

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

TAYLOR DAVIS,

Petitioner

VS.

WILLIAM BANKS III,

Respondent

) Case Number: FMS-16-386868

) Hearing Date: September 24, 2026

) Hearing Time: 1:30 PM

) Department: 414

) Presiding: MUJDAH RAHIM

REQUEST FOR ORDER FOR CHANGE OF CHANGE OF CHILD CUSTODY, CHILD SUPPORT,
AGE APPROPRIATE AUTONOMY AND COMMUNICATION BETWEEN PARENTS; REQUEST
FOR ORDER OF REQUEST FOR CLARIFICATION AND ASSIGNMENT OF TRIAL DATES

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

PROCEDURAL HISTORY:

- 1) The parties are Petitioner Taylor Davis (Mother) and Respondent Williams Banks III (Father).
They share one minor child: Declan Davis (DOB: 10/22/2013).
- 2) San Francisco Department of Child Support Services (SFDCSS) filed a Notice Regarding
Payment of Support on March 19, 2026. On June 12, 2026, SFDCSS filed a Notice of Motion to
modify child support and standard medical orders. On June 23, 2026, Father filed a Notice of
Motion and Motion for Simplified Modification for Child Support. The matter was set for hearing
on July 28, 2026, in Department 414.
- 3) On July 28, 2026, the Court entered a temporary child support order, effective August 1, 2026,
ordering Father to pay guideline child support of \$805 per month. The Court also ordered further
production of documentation and continued the child support matter to September 29, 2026,
reserving jurisdiction retroactive to June 23, 2026.

- 1 4) The custody and visitation orders in effect at that time were set forth in the Finding and Order
2 After Hearing filed February 5, 2026, which maintained the orders previously entered on
3 November 24, 2025. The existing visitation schedule, in place since September 2, 2025, provides
4 Father with parenting time every other weekend from Thursday at 6:00 p.m. through Monday at
5 8:00 a.m., as well as a Thursday dinner visit during the weeks when Father does not have
6 weekend visitation.
- 7 5) On July 23, 2026, Father filed a Request for Order seeking modification of custody, visitation,
8 child support, age-appropriate autonomy and communication for the minor, and all
9 communication between the parents be conducting through a talking parent application.
- 10 6) Father contests the timeshare reflected in the July 28, 2026 temporary child support order and
11 requests that the Court consider the existing visitation schedule in determining the appropriate
12 timeshare for child support purposes.
- 13 7) Father further requests that the minor be permitted reasonable, private, and unmonitored
14 communication with each parent during the other parent's custodial time, including by telephone
15 and electronic means. Specifically, Father requests that the minor retain functional access to his
16 phone so that he may communicate freely with Father, subject only to reasonable parental
17 supervision concerning safety and age-appropriate use.
- 18 8) On July 31, 2026, Father filed a Request for Order seeking clarification and assignment of trial
19 dates. Father requested that custody and visitation issues be addressed on August 24, 2026, and
20 that child support issues be addressed on September 29, 2026, consistent with the July 28, 2026
21 continuance. Father requested clarification so that the parties could adequately prepare the
22 appropriate evidence, witnesses, and financial documentation.
- 23 9) On August 12, 2026, Father filed a supplemental declaration.
- 24 10) Although there is no Proof of Service on file for Father's July 23, 2026 Request for Order,
25 Mother filed a Responsive Declaration on August 17, 2026. Mother stated that the minor does not
26 currently want to see Father and provided context concerning the minor missing a practice.
27 Regarding the minor's autonomy over hairstyle and clothing, Mother indicated that she supports
28 such autonomy because the minor is approaching his teenage years. Mother expressed concerns,
29

1 however, regarding the minor's unmonitored screen time, including the content and gaming to
2 which he may be exposed.

3 11) On August 17, 2026, Father filed an ex-parte request for an order shortening time and for
4 permission to file and have considered a supplemental declaration and relevant exhibits, which
5 were ordered to be served and filed no later than August 21, 2026. consider supplemental
6 declaration.

7 12) At the August 24, 2026 hearing, the parties were referred to mediation, and the matter was
8 continued to September 24, 2026, in Department 414.

9 13) The Court noted that neither party clearly identified the specific visitation orders being requested
10 in their respective Request for Order or Responsive Declaration.

11 **FINDINGS AND ORDER:**

12 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
13 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
14 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
15 child is the United States.

16 2) The Court declines to modify the existing visitation orders at this time. All prior custody and
17 parenting-time orders remain in full force and effect.

18 3) The Court will not address child support at this hearing. Child support is currently set for hearing
19 on September 29, 2026, at 8:30 a.m. in Department 414, as SFDCSS is a party to the child
20 support matter.

21 4) The parties shall communicate with one another regarding the minor child exclusively through
22 OurFamilyWizard application. Each parent shall register for and maintain an active
23 OurFamilyWizard account within 48 hours of entry of this order. The parties shall use the
24 application for all non-emergency communications concerning the minor child, including matters
25 relating to the child's school, health, activities, appointments, parenting time, and other child-
26 related issues.

27 5) The minor shall have reasonable-age-appropriate autonomy regarding his personal appearance
28 and expression, including his hairstyle, clothing, and similar personal choices, provided that such
29

1 choices are neat, clean, safe, and appropriate for school and extra-curricular activities. Neither
2 parent shall interfere with the child's reasonable exercise of such age-appropriate autonomy.

- 3 6) The minor child shall be permitted reasonable, private communication with either parent during
4 the other parent's custodial or parenting time, including telephone, text messages, email, and
5 other reasonable electronic communication. Neither parent shall listen to, view, read, monitor,
6 access, or otherwise interfere with the minor child's private communications with the other
7 parent, unless the child voluntarily shares the communication with that parent or monitoring is
8 reasonably necessary for the child's safety.
- 9 7) The minor child shall retain functional access to electronic devices during both parents' custodial
10 and parenting time so that he may communicate with either parent. Neither parent shall
11 confiscate, disable, or otherwise prevent reasonable communication between the child and the
12 other parent, subject to reasonable restrictions necessary for the child's safety, school
13 requirements, sleep, or age-appropriate use.
- 14 8) Each parent may reasonably monitor the minor child's online activity, internet searches,
15 applications and social media, and gaming activity while the child is in that parent's care. Such
16 monitoring shall be conducted for purposes of the child's safety and age-appropriate use of
17 technology and shall not be used to monitor or interfere with the child's private communications
18 with the other parent.
- 19 9) Neither parent shall discourage, obstruct, restrict, or interfere with the minor child's reasonable
20 communication with the other parent. Each parent shall support the child's ability to maintain an
21 appropriate and continuing relationship with the other parent.
- 22 10) The Court will prepare the Findings and Order After Hearing.
- 23
24
25
26
27
28
29